

The Regulation Behind the Rules

A plain-language breakdown of Alberta Regulation 122/2011 — the Income Support, Training and Health Benefits Regulation (ISTHBR), current as of December 18, 2025

When the July 2 bulletin says the law changed, this is one of the two documents it points to about. Alberta Regulation 122/2011 is the **regulation** — the detailed rulebook that sits under the Act and spells out how the programs really run. This breakdown walks through the parts that matter most to our community, in plain language, with the exact section numbers so you can find them in the original, which is reproduced with this document.

What kind of document this is

A regulation is law, but a lower tier of law than an Act. The Act sets the frame; the regulation fills in the specifics and can be changed more quietly, by Cabinet, without a full debate in the Legislature. That matters, because some of the most consequential details — including which decisions you can appeal — live down here in the regulation rather than up in the Act where they would draw more attention.

Where the appeal bars live: section 97

Section 97 is titled “**General appeal prohibitions.**” It lists a series of director decisions that are, in the regulation's own words, “**exempt from appeal.**” The list includes the proration of income support and benefits, the start and end dates of benefits, what counts as full-time or part-time training, and the amount or value of certain benefits, among others. In plain terms: for the matters named in section 97, there is no appeal. The decision stands, right or wrong.

Why section 97 matters to the record

This is where the appeal-narrowing is written down in black and white. The documented record establishes that a defined list of decisions cannot be reviewed by an appeal panel. When the bulletin adds new items to what cannot be appealed, this is the machinery it is plugging into. The effect is the point: fewer doors to challenge a decision, more decisions that are final the moment they are made.

Where AISH sits inside this regulation

AISH is not a free-standing rulebook here — it appears **inside** this regulation at specific points, including section 16 and section 35, both headed “Assured income for the severely handicapped.” This is worth understanding: AISH, Income Support, and training benefits are woven together in one regulation. So a change to the shared machinery — like the appeal rules or the asset rules — can reach AISH clients even when it is not labelled as an AISH change. Reading only the parts marked “AISH” misses the parts that govern AISH without saying so.

Expected to Work: the conditions attached to help

Section 9 sets out who is designated “**Expected to Work or Working**,” and the sections that follow list situations where such a household is **not eligible** to receive certain benefits. This is the regulatory foundation for the “comply or lose it” provisions the July 2 bulletin builds on. The regulation is where “expected to work” is defined and where the eligibility conditions attached to it are set.

Assets and what is protected

The regulation carries two schedules that decide what counts against you and what does not: **Schedule 1 (Exempt Assets)** and **Schedule 2 (Exempt Financial Resources)**. These are the lists that determine whether something you own or receive is protected or is counted against your eligibility. When a question comes up about whether a particular asset or payment is “exempt,” these schedules are the source — and note that the regulation gives the Director power to exempt some things by decision, which is discretion written into the rules.

The bottom line

This regulation is the rulebook the July 2 changes rewrote. The most important thing in it for our purposes is section 97, the appeal-prohibitions list — the place where “you cannot appeal this” is made law. It also shows how tightly AISH, Income Support, and training benefits are bound together, which is why changes ripple across programs. The full regulation is reproduced with this breakdown.

Source: Alberta Regulation 122/2011, Income Support, Training and Health Benefits Regulation, current as of December 18, 2025 (Alberta King's Printer). Section references are to that consolidation. This breakdown is a plain-language companion, not the official regulation. Where the two differ, the official regulation governs.